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New Jersey Expungement Agent Training Reference

A complete operational knowledge base for clearing criminal records in New Jersey: regular expungement (N.J.S.A. 2C:52-2 / 2C:52-3), the Clean Slate petition (2C:52-5.3), marijuana relief (2C:52-5.1), expedited and arrest expungements, the non-expungeable list, procedure through the NJ Courts e-filing system, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of New Jersey (Superior Court; NJ Courts electronic “Expungement System”)
Primary statutes	N.J.S.A. 2C:52-1 et seq.; Clean Slate § 2C:52-5.3; marijuana §§ 2C:52-5.1, 5.2, 6.1
Controlling change	2019 Clean Slate law (eff. 6/15/2020), as amended by the 2021 marijuana laws
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects N.J.S.A. 2C:52 as amended through 2024–2025

VERIFY BEFORE RELYING

New Jersey uses one term — **EXPUNGEMENT** (N.J.S.A. 2C:52-1: the extraction and sealing of criminal-justice records) — but routes it through several pathways with different limits, so the agent must pick the right one. New Jersey also uses its own vocabulary: “indictable offenses” are felonies (heard in Superior Court) and “disorderly persons” / “petty disorderly persons” offenses are misdemeanors (usually Municipal Court). The 2019 Clean Slate law (eff. 6/15/2020) cut the main waiting period to 5 years, added a 10-year whole-record Clean Slate petition, and built an electronic Expungement System; the 2021 marijuana laws added immediate and automatic relief. Automatic clean-slate sealing is still being implemented, and the State Police have had backlogs. The agent must verify the current statute, waiting period, and system status before relying on any rule.

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How the agent should use this document

New Jersey routes by disposition, number of offenses, and goal. (1) **Arrests without conviction** (acquittal, dismissal) can be expunged immediately or at any time (§§ 2C:52-6, 2C:52-6 expedited). (2) **Regular expungement** clears ONE indictable (felony) conviction plus up to three disorderly persons offenses, OR up to four disorderly persons offenses if there is no felony, generally five years after completing the sentence (sometimes four under the early pathway). (3) **Clean Slate (2C:52-5.3)** lets a person who is “not otherwise eligible” petition to expunge an ENTIRE record of any number of qualifying convictions ten years after the last conviction/payment/release. (4) **Marijuana (2C:52-5.1 et seq.)** provides immediate or short-wait relief and automatic sealing for specified cannabis offenses. The agent should (1) determine conviction vs. non-conviction; (2) count the indictable and DP offenses; (3) choose regular vs. clean slate vs. marijuana; and (4) screen the non-expungeable list (2C:52-2 b/c).

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Statutory shorthand used throughout

N.J.S.A. 2C:52-2	Expungement of INDICTABLE (felony) convictions — one crime + up to 3 DP offenses
2C:52-3	Expungement of DISORDERLY PERSONS offenses — up to four if no felony
2C:52-5.3	CLEAN SLATE petition — entire record, 10 years, if not otherwise eligible
2C:52-5.1 / 5.2 / 6.1	MARIJUANA expungement and automatic sealing “by operation of law”
2C:52-6	ARRESTS not resulting in conviction / expedited (dismissal or acquittal)
2C:52-2 b. and c.	The NON-EXPUNGEABLE crimes (homicide, sexual assault, robbery, etc.)
2C:52-4 / 4.1	ORDINANCE offenses (2-yr) and JUVENILE adjudications (3-yr)
2C:52-7 to -14	Petition, statements, hearing, service, order, and grounds for denial

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1. Eligibility rules

Four main pathways, considered by disposition and the shape of the record.

Path 1 — Regular expungement (2C:52-2 indictable / 2C:52-3 disorderly)

The standard relief, keyed to how many and what kind of convictions:

- **One indictable (felony) conviction PLUS up to three** disorderly persons / petty disorderly persons offenses, with no other disqualifying convictions — expunge all of them.
- **Up to four disorderly persons offenses** (and no felony) — expunge all of them.
- **Single judgment “crime spree” (2C:52-2):** multiple crimes (or a mix of crimes and DP offenses) listed in a SINGLE judgment of conviction may be treated favorably and expunged together, if there is no other subsequent conviction.
- **Third- and fourth-degree drug-distribution convictions** (sale, distribution, possession with intent) may be expungeable in the court's discretion on a showing of compelling circumstances (2C:52-2c).

Path 2 — Clean Slate petition (2C:52-5.3)

A person “not otherwise eligible” under any other section may petition the Superior Court to expunge the ENTIRE record — any number of crimes and disorderly persons offenses — ten years after the most recent conviction, payment of any fine, or completion of probation/parole/incarceration, whichever is latest. It is unavailable if the person has any conviction that is non-expungeable under 2C:52-2 b. or c., and it is available even if the person would otherwise be barred by the prior-expungement rule (2C:52-14(e)). No applications may be filed under this section after the automated clean-slate process is established.

Path 3 — Marijuana / hashish relief (2C:52-5.1, 5.2, 6.1)

- **No waiting period** (immediate after payment/completion/release) for simple possession, failure to make lawful disposition, being under the influence, paraphernalia, and distribution/PWID of less than one ounce of marijuana or less than five grams of hashish (2C:35-5b(12)), including school-zone/public-housing variants.
- **Three-year wait** for distribution of one ounce to five pounds of marijuana, or five grams to one pound of hashish (2C:35-5(11)) — now treated as a disorderly persons offense; no automatic non-disclosure order issues.
- **Automatic sealing “by operation of law”** (2C:52-5.2 / 6.1) for specified marijuana/hashish offenses — possession of six ounces or less, or manufacture/distribution/PWID of one ounce or less of marijuana or five grams or less of hashish.
- Paraphernalia under 2C:36-2 is “not a conviction” for these purposes.

Path 4 — Arrests, dismissals, and other relief

- **Arrests not resulting in conviction (2C:52-6):** expungeable at any time; the court may order an IMMEDIATE expungement if the case is dismissed or the person is acquitted/found not guilty on all counts (expedited).
- **Juvenile adjudications (2C:52-4.1):** generally 3 years after final discharge with no further arrests/charges.

- **Recovery Court (former Drug Court) (2C:35-14(m)):** the court orders expungement on graduation; a person need only apply if they graduated before April 18, 2016.
- **Ordinance offenses (2C:52-4):** 2-year wait.

AGENT GUIDANCE

Count first: one felony + up to three DP, or up to four DP, drives REGULAR expungement; anything beyond that points to CLEAN SLATE (10 years, whole record). Non-convictions go to the immediate / any-time arrest expungement.

Always check marijuana separately — many cannabis offenses are now immediate or automatically sealed and shouldn't be lumped into the regular waiting-period analysis.

2. Waiting periods

Conviction waits run from the latest of: completion of the sentence, release from incarceration, completion of probation/parole, or payment of all fines and fees.

Pathway / matter	Waiting period	Measured from
Regular expungement (indictable + up to 3 DP, or up to 4 DP)	5 years	Latest sentence event
Early pathway (compelling circumstances)	4 years	Latest sentence event
Clean Slate petition (2C:52-5.3)	10 years	Most recent conviction/ payment/release, latest
Disorderly persons (standalone)	5 years	Latest sentence event
Ordinance offenses (2C:52-4)	2 years	Conviction/completion
Juvenile adjudication (2C:52-4.1)	3 years	Final discharge
Arrest / dismissal / acquittal	None	Any time / immediate
Marijuana — simple offenses	None	Payment/completion/release
Marijuana — 2C:35-5(11) distribution	3 years	Latest sentence event

Two New Jersey features matter. First, the 2019 law cut the main indictable/DP wait from ten years to FIVE, with a discretionary FOUR-year early pathway on a showing of compelling circumstances (and all fines/fees paid). Second, the **eligibility-despite-failure-to-pay rule**: if the 10-year Clean Slate period has passed but a court-ordered financial assessment is unpaid — and the nonpayment is not a willful refusal — the person may still apply, and the unpaid amount is converted to a civil judgment transferred to the State Treasurer. All ordinary fines and fees must otherwise be paid before regular expungement.

AGENT GUIDANCE

Use 5 years for regular expungement (4 with compelling circumstances) and 10 years for Clean Slate, always measured from the LATEST sentence event including final payment.

If a user is blocked only by unpaid court-ordered financial assessments after the Clean Slate period, flag the failure-to-pay exception — they may still apply, with the balance moved to a civil judgment.

3. Disqualifying / non-expungeable offenses

New Jersey bars a defined set of serious crimes from expungement entirely (N.J.S.A. 2C:52-2 b. and c.), and these also block the Clean Slate petition.

Never expungeable (2C:52-2 b. and c.)

- **Criminal homicide** (murder, manslaughter), except death by auto in some circumstances.
- **Kidnapping; luring/enticing; human trafficking.**
- **Aggravated sexual assault, sexual assault, and most sex offenses;** endangering the welfare of a child by sexual conduct.
- **Robbery; arson;** certain serious violent crimes.
- **Perjury / false swearing** and certain offenses against public officials or government.
- **Official misconduct, bribery, and public-corruption** offenses committed by a public officer/employee.
- **Certain drug-distribution offenses** above the statutory thresholds (large-quantity manufacturing/distribution; distribution to minors or in school zones beyond the marijuana carve-outs).
- **Exceptions:** relief may still be available where there has been a pardon, or for prostitution offenses arising from being a victim of human trafficking.

Structural limits

- **Prior expungement (2C:52-14(e)).** A petition is generally denied if the person has had a previous criminal conviction expunged — BUT this does not bar the Clean Slate petition (2C:52-5.3), which is available regardless of a prior expungement.
- **Too many convictions for regular expungement.** More than one indictable conviction (outside a single judgment), or more than the DP limits, pushes the person to the Clean Slate path.
- **Pending charges.** A person with a pending criminal matter is not eligible until it is resolved.
- **Unpaid fines/fees** (other than the Clean Slate failure-to-pay exception) must be satisfied first.
- **Out-of-state / federal convictions** are not reachable by New Jersey expungement, but they count when assessing eligibility and the number of convictions.

VERIFY BEFORE RELYING

The non-expungeable list (2C:52-2 b./c.) and the drug-quantity thresholds are detailed and have shifted with the 2019 and 2021 reforms (especially for marijuana). A single non-expungeable conviction blocks BOTH regular and Clean Slate relief. The agent must map each conviction to its N.J.S.A. section, screen the whole record against the non-expungeable list, and verify current thresholds before declaring eligibility.

AGENT GUIDANCE

Screen the entire record against the 2C:52-2 b./c. list first — one non-expungeable crime (homicide, sexual assault, robbery, official misconduct, large-quantity distribution) defeats every pathway. Remember the Clean Slate exception to the prior-expungement bar: a person previously expunged can still use Clean Slate, even though they'd be barred from a second regular expungement.

4. Case outcome rules

Disposition and the count of offenses drive the pathway and the wait. This table is the agent's primary routing logic for New Jersey.

Case outcome / record	Pathway	Route	Waiting period
Dismissed / acquitted (all counts)	2C:52-6	Petition; may be immediate	None / expedited
Arrest, no conviction	2C:52-6	Petition	Any time
One felony + ≤ 3 DP offenses	2C:52-2	Regular petition	5 yrs (4 early)
Up to 4 DP offenses (no felony)	2C:52-3	Regular petition	5 yrs (4 early)
Multiple crimes, single judgment	2C:52-2	Regular petition	5 yrs (4 early)
More crimes than regular allows	2C:52-5.3	Clean Slate petition	10 yrs
Marijuana — simple	2C:52-5.1	Petition / automatic	None
Marijuana — 2C:35-5(11)	2C:52-5.1	Petition	3 yrs
Ordinance offense	2C:52-4	Petition	2 yrs
Juvenile adjudication	2C:52-4.1	Petition	3 yrs
Homicide / sexual assault / robbery / official misconduct / large drug	—	Not expungeable	—

Effect of relief: an expungement extracts and seals (isolates) all records of the arrest, charge, conviction, and related proceedings, so that in most contexts the person may answer that the event did not occur. Under 2C:52-5.4, all eligible convictions are to be rendered inaccessible to the public through sealing/expungement (or an equivalent process) unless the person has a non-expungeable crime. Some uses survive (e.g., certain law-enforcement, judicial, and specified licensing contexts), and the relief reaches New Jersey records only. Marijuana sealing occurs “by operation of law” for specified offenses, and dismissal/acquittal cases can be expunged immediately.

AGENT GUIDANCE

Tell users expungement isolates and seals the record so they can generally deny it; but it reaches NJ records only and certain official uses persist.

For dismissed/acquitted cases, push the expedited 2C:52-6 route — the court can order immediate expungement without the waiting-period analysis.

5. Required forms

New Jersey expungements are filed electronically through the Judiciary's Expungement System, which assembles the petition and proposed order from the information entered; standardized Judiciary forms exist for those who file on paper.

Core components of an expungement filing

- 1 Petition for Expungement (2C:52-7)** — the verified petition, identifying the petitioner, the arrests/charges/convictions to be expunged (date, court, offense, complaint/indictment and docket numbers), the dispositions, and the statutory basis (2C:52-2, 2C:52-3, 2C:52-5.3, 2C:52-5.1, or 2C:52-6).
- 2 Statements to accompany the petition (2C:52-8)** — confirming there are no pending charges, no disqualifying convictions, and that all fines/fees are paid (or the Clean Slate failure-to-pay exception applies).
- 3 Order for Hearing (2C:52-9)** — the court sets a hearing date and the petitioner serves the required agencies.
- 4 Proposed Expungement Order (2C:52-11)** — directing the named agencies to expunge the records; entered if there is no objection (or after a hearing).

AGENT GUIDANCE

Use the NJ Courts Expungement System where possible — it builds the petition and order and routes service. Capture every complaint/indictment and docket number; missing case identifiers are the top cause of rejected petitions.

Include the 2C:52-8 statements (no pending charges, all fees paid) up front — the prosecutor checks these first.

6. Filing instructions (the Expungement System)

- 1 Get the record.** Obtain your complete criminal history from the New Jersey State Police (and/or the courts) to confirm every arrest, charge, disposition, the case identifiers, and the sentence-completion and payment dates.
- 2 Confirm the pathway and eligibility.** Regular (count the indictable + DP offenses) vs. Clean Slate (whole record, 10 years) vs. marijuana vs. arrest expungement; screen the non-expungeable list; confirm fines/fees are paid or the failure-to-pay exception applies; no pending charges.
- 3 Prepare the petition** through the NJ Courts electronic Expungement System (or on the Judiciary paper forms), entering each case and the statutory basis; the system generates the petition, supporting statements, and proposed order.
- 4 File in the Superior Court** of the county where the most recent offense occurred (indictable matters and Clean Slate are Superior Court; the system handles routing). There is no filing fee.
- 5 Service.** The system/court serves the required parties — the County Prosecutor, the Attorney General, the State Police, the court(s), the arresting agency, probation, and any relevant municipal court — who have a window to object.
- 6 Hearing or no-objection order.** If no agency objects, the court may enter the expungement order without a hearing (2C:52-11); if there is an objection, the court holds a hearing.
- 7 Distribution of the order.** Once entered, the petitioner (or the system) serves the signed order on every agency holding records, which then expunge them. Keep a certified copy of the order.

AGENT GUIDANCE

Venue is the Superior Court of the county of the most recent offense, even for disorderly-persons offenses bundled into the petition; the e-system routes it. There is no court filing fee in NJ.

Serving the order on EVERY record-holding agency is the make-or-break step — an agency that isn't served keeps its copy. Build the agency list from the State Police history.

7. Court-specific quirks

- **NJ vocabulary.** “Indictable” = felony (Superior Court); “disorderly persons” / “petty disorderly persons” = misdemeanors (usually Municipal Court). Get the labels right when counting.
- **The count drives the path.** One felony + ≤ 3 DP (or ≤ 4 DP, no felony) = regular expungement; anything more = Clean Slate (10 years).
- **Single-judgment “crime spree.”** Multiple crimes in one judgment of conviction can be expunged together under 2C:52-2 if there's no other subsequent conviction.
- **Clean Slate beats the prior-expungement bar.** 2C:52-5.3 is available even if the person was previously expunged (which would block a second regular expungement under 2C:52-14(e)).
- **No filing fee.** New Jersey charges no fee to file an expungement petition.
- **Electronic Expungement System.** Filing is largely online; the system assembles the petition and order and handles service.
- **Marijuana is special.** Simple cannabis offenses are immediate or automatically sealed “by operation of law”; 2C:35-5(11) distribution has a 3-year wait.
- **Failure-to-pay exception.** Unpaid court-ordered financial assessments don't block Clean Slate if non-willful; the balance becomes a civil judgment to the State Treasurer.
- **Backlogs.** State Police processing has lagged and the automatic clean-slate system is still being implemented — timelines (often 6–12 months) can be long.

AGENT GUIDANCE

Start by classifying each offense as indictable vs. DP and counting them — that single step decides regular vs. Clean Slate.

Set expectations on timing: even a clean petition can take 6–12 months given State Police backlogs.

8. Fee information

Item	Amount	Note
Expungement petition filing	\$0	New Jersey charges no court filing fee
Clean Slate petition	\$0	No filing fee
Marijuana expungement / sealing	\$0	Automatic sealing “by operation of law” for specified offenses
Outstanding fines / fees	Must be paid	Except Clean Slate non-willful failure-to-pay exception
State Police criminal history	NJSP fee	To confirm record before filing
Attorney fees (if represented)	Varies	Not required; Legal Services of NJ & the LSNJ navigator help

New Jersey is one of the least expensive states for expungement: there is NO court filing fee for any expungement petition, and marijuana sealing happens automatically for specified offenses. The practical costs are obtaining the State Police criminal history to confirm the record, and satisfying any outstanding fines or fees before filing (with the Clean Slate failure-to-pay exception for non-willful nonpayment). Legal Services of New Jersey offers a free online expungement navigator and regional legal-services offices assist those who qualify.

AGENT GUIDANCE

Lead with the no-filing-fee point — cost is rarely the barrier in New Jersey; the real gate is satisfying fines/fees and confirming eligibility.

Point users to the Legal Services of NJ expungement navigator and the NJ Courts Expungement System for free, guided filing.

9. Criminal history (State Police) request process

Confirming the record first establishes every case to include, the indictable/DP count (which sets the pathway), the case identifiers the petition needs, and the dates that start the waiting period.

A. Statewide history — New Jersey State Police (SBI/CCH)

- The New Jersey State Police maintain the State Bureau of Identification (SBI) computerized criminal history; a person may request their own record (fingerprint-based) for a fee.
- The State Police are also a key agency served with the expungement order and the agency whose backlog often drives processing time.

B. Court records — Superior and Municipal Courts

- Superior Court (county) holds indictable case files; Municipal Courts hold disorderly persons and ordinance matters. The NJ Courts Expungement System draws on case data to build the petition.

C. Federal — FBI Identity History Summary

- For records that may extend beyond New Jersey, the FBI fingerprint-based Identity History Summary is the federal equivalent; New Jersey expungement reaches New Jersey records only, though out-of-state convictions count toward eligibility.

VERIFY BEFORE RELYING

NJSP request methods and fees, and the status of the automatic clean-slate sealing system, can change. The agent should verify the current State Police request process and fee, and whether automatic marijuana/clean-slate sealing has reached the user's record, at the time of advising.

AGENT GUIDANCE

Frame the NJSP criminal-history request as step one — it produces the indictable/DP count that decides regular vs. Clean Slate and the case identifiers the petition needs. Direct users to the NJ Courts Expungement System to assemble and file.

10. Sample petitions and completed examples

New Jersey expungements are assembled in the Expungement System (or on Judiciary forms) and filed in Superior Court. The examples below show structure and key recitals. Names, dates, and identifiers are fictional and illustrative.

Example A — Regular Petition for Expungement (2C:52-2), one indictable + DP

SUPERIOR COURT OF NEW JERSEY, LAW DIVISION – ESSEX COUNTY
IN THE MATTER OF THE EXPUNGEMENT OF THE
CRIMINAL RECORDS OF ANDRE L. CARTER Docket No. EXP-_____

PETITION FOR EXPUNGEMENT (N.J.S.A. 2C:52-2)

1. Petitioner: Andre L. Carter; DOB 07/22/1992; SBI No.
2. Convictions to be expunged:
 - (a) Theft by unlawful taking (3rd-degree indictable),
N.J.S.A. 2C:20-3; Indictment 19-03-0456; convicted
03/14/2019, Essex County.
 - (b) Disorderly persons -- simple assault, 2C:12-1a;
Municipal Ct., conviction 11/2017.
3. This is ONE indictable conviction plus no more than three
disorderly persons offenses; petitioner has no other
disqualifying convictions.
4. More than FIVE years have passed since completion of the
sentence, payment of all fines/fees, and any probation/
parole (completed 03/14/2020).
5. No charge is pending; no conviction is non-expungeable under
2C:52-2 b. or c.
6. STATEMENTS (2C:52-8): all fines/fees paid; no pending matter.
WHEREFORE petitioner requests an Order directing the State
Police, the County Prosecutor, the courts, and all listed
agencies to expunge these records. (No filing fee.)

Examples B, C & D — Other pathways

B. CLEAN SLATE PETITION (2C:52-5.3) – WHOLE RECORD:

A person 'not otherwise eligible' (e.g., multiple felonies)
may petition to expunge the ENTIRE record 10 years after the
most recent conviction/payment/release, if no conviction is
non-expungeable under 2C:52-2 b./c. Available even if
previously expunged (2C:52-14(e) bar does not apply).

C. EXPEDITED / ARREST EXPUNGEMENT (2C:52-6):

If a case is dismissed or the defendant is acquitted on all
counts, the court may order IMMEDIATE expungement; arrests
not resulting in conviction may be expunged at any time.

D. MARIJUANA (2C:52-5.1 / 5.2 / 6.1):

Simple possession / paraphernalia / under-the-influence and
<1 oz distribution: NO waiting period (or automatic sealing
'by operation of law'). 2C:35-5(11) distribution: 3-year wait.

Expungement Order

The petition is accompanied by a proposed Expungement Order (2C:52-11) directing the New Jersey State Police, the County Prosecutor, the Superior and Municipal Courts, the arresting agency, probation, and any other listed agency to expunge — extract and isolate — all records of the matters listed. If no agency objects before the hearing, the court may enter the order without a hearing.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes New Jersey's expungement statutes and common practice and is not legal advice. New Jersey reformed expungement through the 2019 Clean Slate law (eff. 6/15/2020) and the 2021 marijuana laws, and the automatic clean-slate sealing system is still being implemented; the agent must verify the current text of N.J.S.A. 2C:52, the non-expungeable list (2C:52-2 b./c.), the waiting periods, the Expungement System procedures, State Police request processes, and the status of automatic sealing before relying on any rule here.